

Court No. - 2

Civil Misc. Stay Application No. 382690 of 2012 in

Case :- WRIT - C No. - 68471 of 2012

Petitioner :- Smt. Shakuntala Yadav And Another

Respondent :- Madhyanchal Vidhyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- R.P.S. Chauhan

Respondent Counsel :- C.S.C., Shivam Yadav

Hon'ble Sanjay Misra, J.

According to Sri R.P.S. Chauhan learned counsel for the petitioners the petitioners had preferred an appeal against the provisional assessment and by the impugned order his appeal has been dismissed, however in the meantime final assessment was made and the appellate authority has taken into account the final assessment also. He states that the plea of the petitioners regarding violation of principles of natural justice as contemplated under the Regulation 6.8 of the U.P. Electricity Supply Code 2005 has been violated and hence the impugned orders require to be set aside.

He further states that under the impugned appellate order the appellate authority has directed for giving due adjustment to the petitioner of the amounts deposited by him from January 2011 to January 2012 as also the amount already deposited by the petitioner in pursuance of the provisional assessment whereafter the final amount due against the petitioner be determined and recovered from him.

Under such circumstances it is provided that in case the respondents prepare the final dues of the petitioner in accordance with the direction of the appellate order and submit the same to the petitioner the petitioner shall furnish security within two weeks to the satisfaction of respondent no. 2 which shall be other than cash or bank guarantee.

The security so furnished shall abide by the final result of this writ petition.

Order Date :- 3.1.2013

Pravin

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Heard Sri R.P.S. Chauhan learned counsel for the petitioners and Sri Shivam Yadav for respondent nos. 1 and 2.

Learned counsel for the respondents prays for and is granted four weeks time to file counter affidavit.

List immediately after four weeks.

Order Date :- 3.1.2013

Pravin